

Docket No. FDA-2015-D-3719

“Draft Guidances Relating to the Regulation of Human Cells, Tissues, and cellular and tissue-based Products”

I am responding to the request for comments regarding the recent FDA hearing regarding HCT/P's. I am quite honestly appalled that it was necessary to have these hearings. There does not appear to be any reason for the FDA to be involved in this area. The practice of medicine is already thoroughly overseen by the Board of Medicine in each state. That the federal government would become involved in how doctors treat patients is redundant and confusing.

Stem cell treatments have been given since the 1960's in the form of Bone Marrow transplants. Although they were very toxic initially, and not studied for decades, this procedure was given the opportunity to be developed and now is the standard of medicine. Over 50,000 patients have been treated with Adipose Derived Stem Cells, with barley an incident, yet this superior stem cell treatment is being subject to extraordinary scrutiny. Over 100,000 people die every year from taking antibiotics correctly, and these are FDA approved medications. There is not a single medication on the market that is as safe as mesenchymal stem cells. If the procedure of obtaining stromal vascular fraction is required to have large, placebo controlled, double-blind studies, then your intention must also be for all surgical procedures to undergo the same studies. This has never been done, and would be catastrophic for the practice of medicine.

Patients should have the right to choose how they are treated. The opportunity to make informed decisions, based on fact is a patient right. When universities do not disclose the fact that they are a business, requiring the funding of pharmaceutical company's grants, the reality of research is not as clear. Most people believe that the billions of dollars given to universities is for the purpose of improving/extending patient lives. This is, however, not the goal of most of these institutions, who rarely bring to market any product or procedure that directly impacts patients. In addition, university staff do not need to disclose this bias. When patients find that the best option for them is to have stem cell treatments, they should not be compelled to leave the country so that they can receive the most up to date therapies.

That the FDA would consider labeling a patient's own body tissue a drug is insulting. I should no more be told when, where, and how I may use my own body, than regulating what I eat. If I decide to have cookies for lunch, this may not be healthy or logical, but should not be illegal. We all require and appreciate the intervention of the FDA when we are discussing oversight of drugs, but this is not the case being discussed here.

Thank you for your time.